

25PR01503 Estate of Mark Scott Freeman

County: sonoma

Division: Probate

Hearing date: 2026-09-10

Motion: Motion to Compel Deposition

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Estate of Mark Scott Freeman

25PR01503

Motion to Compel Deposition

Tentative Ruling: NO APPEARANCES REQUIRED. On August 28, 2026, the Court ordered the matter stayed regarding Casey's "Petition for Order Authorizing Surviving Spouse to Remain in Possession of Family Dwelling Pending Hearing on Homestead Set-Aside and Spousal Property Petition," filed July 2, 2026, pending resolution of the annulment action in 25FL01284. The Court made that order after the parties had briefed this motion.

The moving papers here indicate that the deposition's purpose is to explore the claims made in the July 2, 2026 petition. This means that the issues which the deposition appears intended to address are stayed. The Court therefore finds that the proceedings involving this deposition are stayed and, as a result, the Court orders the deposition itself, and enforcement of this order compelling deposition, to be stayed. Nonetheless, in the interests of justice and judicial economy and efficiency for the Court and the parties, the Court also finds it appropriate at this time to make a determination on the merits of this motion. The motion to compel Casey Ann Campbell Freeman's deposition is GRANTED. Once the annulment action has been resolved and the Court subsequently lifts the stay on the July 2, 2026 petition, depending on the outcome and whether the relevant proceedings here are rendered moot, this order will immediately become enforceable. Casey Ann Campbell Freeman shall then appear for deposition at a date, time, and location agreed upon by counsel, or, absent agreement, on a date designated by Petitioners that is no fewer than ten (10) days after service of notice of the deposition issued after the lifting of the stay.

The prevailing party shall prepare and serve a proposed order consistent with this tentative ruling.

End of Tentative Ruling

Administrative

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